

misrepresentation, with knowledge of its falsity, with the intent to induce another's reliance, actual and justifiable reliance, and resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.) Fraud must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* 245 Cal.App.4th 821, 838.) The first amended cross-complaint falls short of these pleading requirements.

Declaratory Relief

Cross-complainants' third cause of action for declaratory relief rests entirely on the defective allegations supporting the first and second causes of action. In light of the court's ruling sustaining the demurrer as to the first and second causes of action, the demurrer is also sustained as to the third cause of action.

Conclusion

The demurrer is sustained in its entirety with leave to amend. Any second amended cross-complaint shall be filed and served on or before **September 28, 2026**.

12. S-CV-0056853 Spanos, Stefani v. Woodstream Golden Sands

Defendants' Demurrer to Plaintiff's Complaint

Defendants Woodstream Golden Sands LLC, Woodstream Colony LLC, and FPI Management, Inc. (FPI) demur to the second and seventh causes of action for nuisance and retaliatory eviction. FPI separately demurs to the third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment, and sixth cause of action for constructive eviction. Plaintiffs Stefani Spanos and Chloe Sepulveda oppose the motion.

Defendants' request for judicial notice of the parties' lease agreement is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only

refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Second Cause of Action

Defendants demur to plaintiffs' second cause of action for nuisance as duplicative of the first cause of action for negligence. "Nuisance is an entirely separate cause of action from negligence... Even if the nuisance claim relies on the same facts about lack of due care supporting the negligence claim, it does not mean the claims are identical or duplicative." (*Lynch v. Peter & Associates* (2024) 104 Cal.App.5th 1181, 1198.) To prevail on an action for private nuisance, a plaintiff must first prove an interference with the plaintiff's use and enjoyment of his or her property. (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 938.) Second, "the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer 'substantial actual damage.'" (*Ibid.*) Third, "[t]he interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be 'of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.'" (*Chase v. Wizmann* (2021) 71 Cal.App.5th 244, 253.)

The complaint alleges sufficient facts to allege a cause of action for nuisance. (Compl. ¶¶ 90-91, 94-95.) As to the second cause of action for nuisance, defendants' demurrer is overruled.

Third, Fourth and Fifth Causes of Action

FPI demurs to plaintiffs' third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, and fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment on the grounds it is not a party to the subject lease agreement, a fact which plaintiffs concede.

As to the third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, and fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment, FPI's demurrer is sustained with leave to amend.

Sixth Cause of Action

FPI demurs to plaintiffs' sixth cause of action for constructive eviction on the grounds it is neither a landlord nor an owner of the property. "Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property." (Civ. Code, § 1714.) Plaintiffs may allege tort claims, such as constructive eviction, against an agent of the owner. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 929-30; *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1030-31, 1036; *Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 901.)

The complaint alleges sufficient facts to allege a cause of action for constructive eviction against FPI. (Compl. ¶¶ 143-147.) As to the sixth cause of action for constructive eviction, FPI's demurrer is overruled.

Seventh Cause of Action

Defendants demur to plaintiffs' seventh cause of action for retaliatory eviction on the grounds plaintiffs fail to satisfy the heightened pleading requirements applicable to a claim for retaliatory eviction under Civil Code section 1942.5. Specifically, plaintiffs fail to allege facts that plaintiffs engaged in protected activity within the 180-day period preceding the alleged constructive eviction.

As to the seventh cause of action for retaliatory eviction, the demurrer is sustained with leave to amend.

Any amended complaint shall be filed and served on or before **September 28, 2026**.

Defendants' motion to strike

Defendants Woodstream Golden Sands LLC, Woodstream Colony LLC, and FPI Management, Inc. (FPI) move to strike plaintiffs' claim for punitive damages. FPI also moves to strike the prayer for attorneys' fees as against FPI. Plaintiffs Stefani Spanos and Chloe Sepulveda oppose the motion.

The motion is granted. The allegations of the complaint do not sufficiently allege facts establishing oppression, fraud or malice so as to sustain the prayer for punitive damages. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894; *Smith v. Superior Court* (1992) 10 Cal.Ap.4th 1033, 1041-42.) Further, plaintiffs fail to allege a statutory or contractual basis to support an award of attorneys' fees against FPI.

Defendants' motion to strike is granted with leave to amend. Any amended complaint shall be filed and served on or before **September 28, 2026**.

13. S-CV-0056872 Dowling, Teresa Evelyn v. DMV

Status Conference

Petitioner seeks issuance of a writ of administrative mandate directing respondent to rescind its suspension of petitioner's driver's license or to require respondent to make reasonable accommodations for further testing. Respondent has answered the first amended petition.

Petitioner lodged the administrative record on September 3, 2026. However, according to the parties' joint declaration filed the same day, it appears petitioner intends to file a